

Ramzan Ali v. State of U.P.

Allahabad High Court · Division Bench · 3 February 2015 · Criminal Misc. Writ Petition No. 2722 of 2015 · **s.135 FIR not quashed; CrPC 41/41-A on arrest; compounding under Code 2005.**

HEADNOTE

Ramzan Ali sought quashing of a s.135 Electricity Act FIR (Case Crime No. 561 of 2014, P.S. Mughalsarai, Chandauli). The Division Bench held the FIR disclosed a cognizable offence and refused to quash it. Arrest had not been made. If arrest were contemplated for an offence not entailing more than seven years' imprisonment, police must comply with CrPC ss. 41(1)(b) and 41-A. If the offence is compoundable, the petitioner may seek the remedy under the Electricity Supply Code, 2005.

FACTUAL SUMMARY

Ramzan Ali petitioned the Allahabad High Court to quash an FIR dated 28 December 2014, registered as Case Crime No. 561 of 2014 under Section 135 of the Electricity Act, 2003 at Police Station Mughalsarai, District Chandauli. Counsel for the State and the U.P. Power Corporation appeared. He had not been arrested. Counsel argued that the alleged offence could not attract more than seven years' imprisonment, so arrest should not be mechanical, and that the offence was compoundable.

HOLDING-UNITS

HOLDING-UNIT · EA2003::135

s.135 FIR quash; arrest safeguards; compounding

HOLDING

An FIR under s.135 of the Electricity Act, 2003 that discloses a cognizable offence is not to be quashed. Where arrest has not been made, apprehension of a breach of CrPC ss. 41(1)(b) and 41-A does not warrant interference; if arrest is contemplated for an offence not entailing more than seven years' imprisonment, police shall comply with those provisions. If the offence is compoundable, the accused may seek the remedy provided under the Electricity Supply Code, 2005. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — COMPOUNDING OF THE S.135 OFFENCE ON MERITS

Court did not compound or decide compoundability; petitioner may seek the Supply Code, 2005 remedy if the offence is compoundable. ¶ 1